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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

06/15/2026
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**SECOND SUPPLEMENTAL REQUEST
FOR JUDICIAL NOTICE**

Hearing: June 24, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Evidence Code section 453; Evidence Code sections 452, subdivision (d) and 452, subdivision (h); California Rules of Court, rule 3.1113, subdivision (l); and California Rules of Court, rule 3.1306, subdivision (c).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

- 1 4. The Court's authority to consider the substance is under *Sosinsky v. Grant* (1992) 6 Cal.App.4th
2 1548, 1564 to 1569; *Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 919; *Jack-*
3 *son v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183; and *MW Erectors, Inc. v.*
4 *Niederhauser Ornamental & Metal Works Co., Inc.* (2005) 36 Cal.4th 412, 422. The noticed
5 802 defense records complement Plaintiff's filed Supplemental Request for Judicial Notice
6 of CGC-25-631801 filings (Exhibits 801-A through 801-I) and are relevant to pending MIL
7 and estoppel arguments already raised in Plaintiff's Operative Oppositions.
- 8 5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section
9 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

10
11 **TO THE HONORABLE COURT, ALL PARTIES, AND THEIR ATTOR-**
12 **NEYS OF RECORD:**

13 Pursuant to California Evidence Code sections 452(d) and 453, and California Rules of Court, rule
14 3.1306(c), Plaintiff Franciscus Dylan Rosario hereby requests that this Court take judicial notice
15 of defense motion papers filed in this action (CGC-25-631802) and selected CGC-21-594102 trial-
16 record items noticed in defense RFJNs but not individually attached to Plaintiff's May 8, 2026
17 Operative Oppositions.

18 Plaintiff submits this **Second Supplemental** Request for Judicial Notice to **complement and sup-**
19 **port** Plaintiff's filed Supplemental Request for Judicial Notice of CGC-25-631801 filings and the
20 May 12, 2026 Department 301 minute order (Exhibits 801-A through 801-I). That first supplemen-
21 tal noticed CSAA's **winning 801 positions** and Department 301's adoption of them. This second
22 supplemental notices **802 defense motion language** and **594102 trial-record items** that create the
23 material juxtaposition identified in the first filing and in Plaintiff's Operative Oppositions (Tabs 03
24 to 05 and 07).

25 This filing is **not** supplemental briefing. Plaintiff notices CSAA's 802 defense representations and
26 the existence of defense-noticed trial records; the juxtaposition is **material to pending motions**
27 and to **whether CSAA may assert inconsistent positions** across the related actions. Plaintiff does
28 not ask the Court to **finally adjudicate** judicial estoppel on this paper alone.

1 This is a **standalone second supplemental** Request for Judicial Notice filed as a **new SFTC**
2 **transaction** (Transaction 2). It does not ask the clerk to replace or update Transaction 1 (Plaintiff's
3 filed Supplemental RJN of 801 filings) or any prior filing in this action.

4 Plaintiff requests judicial notice of the following specific documents, true and correct copies of
5 which are attached hereto as Exhibits 802-A through 802-G:

6 **EXHIBIT 802-A: REQUEST FOR JUDICIAL NOTICE IN SUPPORT**
7 **OF SPECIAL MOTION TO STRIKE (802 ANTI-SLAPP RFJN)**

8 **Date Filed:** April 9, 2026 | **Docket Transaction No.:** DocID 10152117 (FSX txn 79007560)

9 **Direct Request for Judicial Notice:** Plaintiff requests judicial notice under **Evid. Code § 452(d)**
10 of this document's existence, filing, and legal effect. Plaintiff asks the Court to notice the RFJN
11 face page citing **Code of Civil Procedure section 430.70** (a nonexistent statute for judicial notice
12 in California); the enumerated trial-record notice list at **items 5 through 8** (MIL 6, MIL 8, MIL
13 17, and Order re Trial Scheduling and Motions in Limine); and CSAA's incorporation of those
14 594102 records into its 802 anti-SLAPP theory.

15 **The 802 Context and Admissibility:** Under **Evid. Code § 1220**, CSAA's authorized counsel
16 filings are party statements if offered against CSAA. This RFJN is the instrument through which
17 CSAA asked this Court to notice the same silent-witness nucleus CSAA immunized as litigation
18 conduct in 801.

19 **Estoppel Relevance (Material Juxtaposition):** CSAA's 802 RFJN lists MIL 6, MIL 8, MIL
20 17, and the trial scheduling order as records supporting CSAA's "court denied MILs" and "fully
21 litigated" themes, yet CSAA simultaneously asks this Court to credit a pre-litigation denial letter
22 premised on CSAA having **failed to obtain** the same 911 audio, body-worn camera footage, and
23 computer aided dispatch records. (Relates to filed Exhibits 801-A through 801-D; Operative Anti-
24 SLAPP Opposition Section II; Declaration item 04 Section VI.)

1 **EXHIBIT 802-B: MEMORANDUM OF POINTS AND AUTHORITIES**
2 **IN SUPPORT OF SPECIAL MOTION TO STRIKE (802 ANTI-SLAPP**
3 **MPA)**

4 **Date Filed:** April 9, 2026 | **Docket Transaction No.:** DocID 10152120 (FSX txn 79007560)

5 **Direct Request for Judicial Notice:** Plaintiff requests judicial notice under **Evid. Code § 452(d)**
6 of this document's existence, filing, and legal effect. Plaintiff asks the Court to notice CSAA's
7 institutional posture at **Section III.D** (no role in litigation aside from funding); **pp. 6 to 7** (reviewed
8 available evidence; Ins. Code § 790.03); and **pp. 12 to 13** (court denied MILs; plaintiff free to
9 present objective liability evidence).

10 **The 802 Context and Admissibility:** Under **Evid. Code § 1220**, CSAA's statements in this filing
11 are party admissions if offered against CSAA.

12 **Estoppel Relevance (Material Juxtaposition):** In 802, CSAA represents it **subsequently had no**
13 **role in litigation, aside from retaining insurance defense counsels and funding the defense,**
14 while simultaneously invoking MIL outcomes and trial scheduling orders it funded counsel to
15 procure. In 801, Department 301 granted CSAA relief after CSAA advanced unified insurer-and-
16 counsel litigation positions over the same silent-witness nucleus (**Exhibit 801-D**, incorporated by
17 reference). This juxtaposition is material to demurrer imputation and anti-SLAPP gravamen coher-
18 ence. (Relates to filed Exhibit 801-A; Operative Demurrer Opposition Section V.B; discrepancy
19 register G-1 and G-3 below.)

20 **EXHIBIT 802-C: MEMORANDUM OF POINTS AND AUTHORITIES**
21 **IN SUPPORT OF DEMURRER (802 DEMURRER MPA)**

22 **Date Filed:** April 13, 2026 | **Docket Transaction No.:** DocID 10157163 (FSX txn 79038567)

23 **Direct Request for Judicial Notice:** Plaintiff requests judicial notice under **Evid. Code § 452(d)**
24 of this document's existence, filing, and legal effect. Plaintiff asks the Court to notice CSAA's
25 recital that plaintiff alleges CSAA **failed to obtain** foundational objective evidence before the
26 denial letter; **pp. 8 to 9** (jury agreed with CSAA; good-faith interpretation dispute); and treatment
27 of in-court statements as **interpretation**, not factual petitioning.

1 **The 802 Context and Admissibility:** Under **Evid. Code § 1220**, CSAA’s statements in this filing
2 are party admissions if offered against CSAA.

3 **Estoppel Relevance (Material Juxtaposition):** CSAA asks this Court to treat trial-court state-
4 ments as non-factual **interpretation** disputes while having immunized the same statements as
5 factual § 425.16(e) petitioning in 801 (**Exhibit 801-A**, pp. 9 to 11, incorporated by reference).
6 CSAA also invokes a defense verdict and jury agreement while disowning the MIL and trial con-
7 duct that produced that verdict. (Relates to discrepancy register G-2 and G-5; Operative Demurrer
8 Opposition Section II-bis.)

9 **EXHIBIT 802-D: MEMORANDUM OF POINTS AND AUTHORITIES**
10 **IN SUPPORT OF MOTION TO STRIKE UNDER SECTION 436 (802**
11 **§436 MPA)**

12 **Date Filed:** April 22, 2026 | **Docket Transaction No.:** DocID 10174569 (FSX txn 79127897)

13 **Direct Request for Judicial Notice:** Plaintiff requests judicial notice under **Evid. Code § 452(d)**
14 of this document’s existence, filing, and legal effect. Plaintiff asks the Court to notice CSAA’s
15 representations that it **performed an investigation, reached a different conclusion, the jury**
16 **agreed** with CSAA, and that plaintiff was **free to present** objective liability evidence because the
17 court denied MILs (**Exhibit 802-A** RFJN Exs. E through H).

18 **The 802 Context and Admissibility:** Under **Evid. Code § 1220**, CSAA’s statements in this filing
19 are party admissions if offered against CSAA.

20 **Estoppel Relevance (Material Juxtaposition):** CSAA cannot simultaneously vouch a regulation-
21 compliant investigation in 802 and vouch opposite truth-claims in MIL 6 and MIL 17 that Depart-
22 ment 301 treated as fully litigated in 801 (**Exhibits 801-G and 801-H**, incorporated by reference).
23 The “free to present” theme conflicts with MIL 8’s exclusion of liability-insurance statements
24 CSAA now relies upon through the denial letter. (Relates to discrepancy register G-1 and G-2;
25 Operative Anti-SLAPP Opposition Section II.)

1 **EXHIBIT 802-E: MOTION IN LIMINE NO. 8 (MIL 8) TO EXCLUDE**
2 **EVIDENCE AND STATEMENTS CONCERNING LIABILITY INSUR-**
3 **ANCE (594102)**

4 **Date Filed:** January 17, 2025 | **Docket Transaction No.:** FSX txn 80936014 (CGC-21-594102)

5 **Direct Request for Judicial Notice:** Plaintiff requests judicial notice under **Evid. Code § 452(d)**
6 of this motion's existence, filing, and legal effect, including CSAA-funded counsel's effort to ex-
7 clude liability-insurance-related statements at trial. Pin cites: title; substantive exclusion request
8 (CT bookmark approximately p. 1581 in consolidated trial record).

9 **The 802 Context and Admissibility:** Under **Evid. Code § 1220**, CSAA's litigation positions in
10 this filing are party admissions if offered against CSAA. As reflected in **Exhibit 801-D** (incorpo-
11 rated by reference), Department 301 treated MIL 8 as part of a fully litigated silent-witness record
12 supporting CSAA's 801 anti-SLAPP victory.

13 **Estoppel Relevance (Material Juxtaposition):** Plaintiff's filed Supplemental RJN referenced
14 MIL 8 in narrative but did not attach MIL 8 as a standalone exhibit. This exhibit **fills that gap**.
15 CSAA cannot invoke MIL 8 as proof the silent-witness issues were fully litigated in 801 while
16 asking 802 to treat the February 25, 2021 denial letter as insulated pre-litigation speech outside the
17 same evidentiary nucleus. (Relates to discrepancy register G-1; filed Exhibit 801-D.)

18 **EXHIBIT 802-F: ORDER RE TRIAL SCHEDULING AND MOTIONS**
19 **IN LIMINE (594102; DEFENSE RFJN EX. H)**

20 **Date Filed:** Per trial docket in CGC-21-594102 | **Docket Transaction No.:** Noticed as RFJN Ex.
21 H to 802 Anti-SLAPP RFJN (DocID 10152117)

22 **Direct Request for Judicial Notice:** Plaintiff requests judicial notice under **Evid. Code § 452(d)**
23 of this order's existence, entry, and legal effect, including any grant or denial of defense MILs
24 referenced in CSAA's 802 briefing.

25 **The 802 Context and Admissibility:** This order is a court record of this state. CSAA's 802 MPAs
26 cite this order for the proposition that plaintiff was **free to present** evidence CSAA simultaneously
27 excluded through MIL practice.

1 **Estoppel Relevance (Material Juxtaposition):** CSAA’s “court denied MILs / free to present”
2 narrative in **Exhibits 802-B and 802-D** depends on this order, yet CSAA’s 801 victory treated
3 MIL 6, MIL 8, and MIL 17 as fully litigated exclusion victories (**Exhibit 801-D**, incorporated by
4 reference). (Relates to discrepancy register G-1.)

5 **EXHIBIT 802-G: DISCREPANCY REGISTER (802 DEFENSE REPRESENTATIONS VS. 801-ADOPTED POSITIONS)**

7 **Date Prepared:** June 2026 | **Source:** This Second Supplemental Request for Judicial Notice,
8 Section IV

9 **Direct Request for Judicial Notice:** Plaintiff requests judicial notice under **Evid. Code § 452(d)**
10 of this register as a party-prepared summary of record juxtapositions tendered with the noticed
11 exhibits. The register does not substitute for the underlying records in **Exhibits 802-A through**
12 **802-F** or the filed **Exhibits 801-A through 801-I**.

13 **Estoppel Relevance (Material Juxtaposition):** This one-page register links each gap ID (G-1
14 through G-5) to the 802 defense representation, record pin, and estoppel tie already argued in
15 Plaintiff’s Operative Oppositions, completing the cross-case record spine begun in Transaction 1.

17 **II. SCOPE OF NOTICE REQUESTED**

18 Plaintiff requests judicial notice of the existence, filing, contents, and legal effect of the noticed
19 records in **Exhibits 802-A through 802-G**, including CSAA’s 802 defense motion language and
20 the 594102 trial-record items listed in **Exhibit 802-A**.

21 Plaintiff **incorporates by reference** Plaintiff’s filed Supplemental Request for Judicial Notice
22 (Transaction 1) and **Exhibits 801-A through 801-I** thereto. Plaintiff does **not** re-attach MIL 6
23 or MIL 17; those remain at **Exhibits 801-G and 801-H** in Transaction 1.

24 Plaintiff does not request judicial notice of the truth of every factual recital contained inside those
25 records. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569; *Aaronoff v. Martinez-*
26 *Senftner* (2006) 136 Cal.App.4th 910, 919.)

27 The noticed fact is that CSAA made the identified 802 defense representations and noticed the

1 identified 594102 records to support its pending motions. Plaintiff requests notice of existence,
2 contents, legal effect, and litigation positions reflected in the records, not historical adjudication of
3 disputed facts.

4 **WHY A SECOND SUPPLEMENTAL IS NECESSARY**

- 5 1. Plaintiff's May 8, 2026 Operative Oppositions (Tab 07 RFJN) did not individually notice
6 defense **802 RFJN** trial-record exhibits (MIL 6, MIL 8, MIL 17, scheduling order).
- 7 2. Transaction 1 (filed Supplemental RJN of 801 filings) focused on 801 adjudication and at-
8 tached MIL 6 and MIL 17 as **Exhibits 801-G and 801-H**, but referenced MIL 8 only in
9 text.
- 10 3. This Transaction 2 supplies the **802 defense paper spine** and the **standalone MIL 8 exhibit**
11 needed for a complete estoppel and material-juxtaposition record before the June 24, 2026
12 hearing.

14 **III. AUTHORITIES SUPPORTING JUDICIAL NOTICE**

15 **Evidence Code section 452, subdivision (d).** Records of any court of this state are subject to
16 judicial notice. **Exhibits 802-E and 802-F** are court records from CGC-21-594102. **Exhibits**
17 **802-A through 802-D** are court records filed in this action.

18 **Evidence Code section 452, subdivision (h).** Facts capable of immediate and accurate determi-
19 nation from sources of reasonably indisputable accuracy, including docketed defense filings.

20 **Evidence Code section 453.** Plaintiff provides sufficient notice through this filing, service, and
21 the accompanying declaration and exhibits.

23 **MEMORANDUM OF POINTS AND AUTHORITIES**

24 **I. INTRODUCTION**

25 Plaintiff's filed Supplemental RJN (801-A through 801-I) established that Department 301 granted
26 CSAA's special motion to strike on May 12, 2026, after adopting CSAA's litigation-conduct frame
27 over the silent-witness nucleus. CSAA's **802 defense papers** now ask Department 302 to credit

1 incompatible premises: pre-litigation commercial speech, a passive funding role, completed in-
2 vestigation, and “failed to obtain” narratives concerning the same 911 audio, body-worn camera
3 footage, and computer aided dispatch records. This Second Supplemental RJN completes the
4 record for arguments already raised in Plaintiff’s Operative Oppositions.

5 **II. JUDICIAL NOTICE AUTHORITIES**

6 Under *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569, courts take judicial notice that a
7 party made certain representations and that courts issued orders, but not that every disputed factual
8 assertion inside those records is true. Under *Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th
9 910, 919, judicial notice extends to existence of court records and orders, not to truth of disputed
10 factual assertions therein.

11 California Rules of Court, rule 3.1113, subdivision (l), requires a party requesting judicial notice
12 to explain relevance. Each exhibit block above satisfies that requirement.

13 **III. LEGAL MIS-CITATION: CODE OF CIVIL PROCEDURE SECTION** 14 **430.70**

15 **Exhibit 802-A** cites **Code of Civil Procedure section 430.70** as authority for judicial notice. No
16 such section exists in the California Code of Civil Procedure for RFJN practice. Proper vehicles
17 are **Evidence Code sections 452 and 453** and **California Rules of Court, rule 3.1306**. This mis-
18 citation is noticed for what it shows about CSAA’s record handling, not as an independent ground
19 for denial of CSAA’s pending motions.

20 Judicial notice of adjudicative facts from prior proceedings remains governed by *Throckmorton v.*
21 *Superior Court* (2007) 153 Cal.App.4th 1131, 1138; *Wouldridge v. Jacobs* (2003) 107 Cal.App.4th
22 434, 440; and *In re Angelia P.* (1981) 28 Cal.3d 908, 918. Under *Sosinsky* and *Aaronoff*, Plaintiff
23 requests notice of the **existence and legal effect** of CSAA’s noticed records, consistent with the
24 hybrid notice framework applied in Transaction 1.

25 **IV. DISCREPANCY REGISTER (G-1 THROUGH G-5)**

ID	Defense representation (802)	Record pin	Estoppel / relevance tie
G-1	“Court denied MILs” / plaintiff “free to present”	802-B, 802-D, 802-F; MIL 8 grant context (802-E)	Conflicts with 801 May 12 “fully litigated” MIL framing (Exhibit 801-D); Operative Anti-SLAPP Opposition Section II
G-2	“Jury agreed with CSAA investigation”	802-C, 802-D	Conflicts with MIL unknown-provenance themes in Exhibits 801-G and 801-H ; distinguish <i>In re Angelia</i> finality rhetoric from investigation-complete claim
G-3	“No role in litigation aside from funding”	802-B Section III.D	Conflicts with 801 institutional-defense and “even if CSAA ratified” framing (Exhibits 801-A, 801-D); Operative Demurrer Opposition Section V.B
G-4	“Failed to obtain” 911 / BWC / CAD	802-A, 802-B, 802-C	Conflicts with 801 gather- ing/maintaining/transferring narrative (Exhibits 801-A, 801-C); Exhibits 801-G and 801-H incorporated by reference
G-5	In-court statements as “interpretation”	802-C pp. 8 to 9	Conflicts with 801 treatment of same statements as factual petitioning (Exhibit 801-A pp. 9 to 11; Exhibit 801-I incorporated by reference)

Plaintiff does not ask the Court to finally adjudicate judicial estoppel on this paper alone. This register makes the juxtaposition visible for arguments already raised in Plaintiff’s Operative Oppositions.

V. RELATIONSHIP TO TRANSACTION 1 AND OPERATIVE OPPOSITIONS

Layer	Transaction 1 (filed)	Transaction 2 (this filing)
Primary record	801 adjudication (801 briefs, May 12 order, MIL 6/17, transcript pins)	802 defense briefs + 594102 gaps (MIL 8, scheduling order)
Estoppel function	Notices CSAA’s 801 positions the court adopted	Notices 802 defense representations that contradict those positions
Combined appendix		

VI. PROPOSED ORDER LANGUAGE

Plaintiff respectfully proposes that the Court enter the following:

“The Court takes judicial notice under Evidence Code sections 452, subdivisions (d) and (h), and 453, of Exhibits 802-A through 802-G to Plaintiff’s Second Supplemental Request for Judicial Notice. Judicial notice is taken of the existence, filing, contents, and legal effect of the noticed records only, and not of the truth of any disputed factual recital within those records. This judicial-notice ruling supports the Court’s consideration of arguments raised in Plaintiff’s Opposition Brief and complements the Court’s consideration of Exhibits 801-A through 801-I to Plaintiff’s filed Supplemental Request for Judicial Notice.”

1 **VII. SERVICE**

2 This Request and the noticed exhibits are served on Defendant's counsel of record (Mark G. Tapp,
3 Tyler J. O'Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per
4 Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, with a Proof of
5 Service (POS-050) filed contemporaneously.

6
7 **VIII. EXHIBIT ATTACHMENT NOTE**

8 The exhibits are lodged as a separate combined appendix volume titled , uploaded as its own
9 attachment with this filing. That volume contains CRC 3.1110(f)(4) electronic bookmarks for
10 Exhibits 802-A through 802-G.

11 Where a docketed PDF is not yet retrievable from the SFTC portal in time for filing, Plaintiff has
12 lodged a placeholder cover sheet identifying the noticed record by exhibit label and DocID or FSX
13 transaction number, and will substitute the verified PDF when retrieved. **Exhibits 802-E (MIL**
14 **8) and 802-F (scheduling order)** remain subject to trial-docket portal verification before final
15 chambers lodging.

Dated: June 12, 2026



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Plaintiff, In Pro Per

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